



AUCTION PARTICIPATION "CLICK TERMS" AGREEMENT

If Bidder has not signed a T-Mobile Surplus Inventory Purchase Agreement (the "Purchase Agreement"), Bidder's participation in the T-Mobile Surplus Inventory Auction (the "Auction") will be suspended until the parties have signed a Purchase Agreement.

A. The terms of the Purchase Agreement are applicable to all Auction activities conducted under this T-Mobile Surplus Inventory Auction Agreement (the "**Agreement**"). This Agreement will supplement the terms of the Purchase Agreement. If there is a conflict of terms between the Purchase Agreement and this Agreement, the terms of this Agreement will control, but only to the extent of the conflict. T-Mobile reserves the right, from time to time, with or without notice to you, to change this Agreement in its sole and absolute discretion. The most current version of this Agreement will supersede all previous versions for participation in the Auction. Your use of the Site or continued purchases after changes constitute your notice of and agreement to be bound by such changes. No purchase order or other documentation issued by you to T-Mobile will alter this Agreement. You agree to keep your email address and other contact information current at all times.

B. When you register for the Auction on this Site, you are agreeing to T-Mobile's privacy policy, which may be found at <https://www.t-mobile.com/privacy-center/our-practices/privacy-policy>.

C. The person or legal entity given access to this Agreement has been identified as a possible Bidder ("**Bidder**") in the Auction that will be hosted by or on behalf of T-Mobile's using the Auction application (the "**Application**") on the hosted website ("**Site**").

D. "**Bidder's Representative**" is an employee or agent of the Bidder authorized to act on the Bidder's behalf, including accepting or rejecting this Agreement. Bidder's Representative represents that he/she has the authority to bind the Bidder to this Agreement. Neither Bidder's Representative nor Bidder may participate in or use the Application if Bidder's Representative does not have such authority.

TERMS

1. **AUCTION PARTICIPATION.** In order to participate in the Auction, Bidder must agree to this Agreement. Please review this Agreement carefully and indicate whether Bidder accepts these terms and conditions by clicking on the appropriate response ("Acknowledgement" of documents). If Bidder rejects this Agreement, Bidder will not be allowed to participate in the Auction.

2. **INVENTORY.** The Inventory that may be sold at Auction includes but is not limited to cell phones, tablets, smartwatches, accessories (Bluetooth and non-Bluetooth), and internet of things or "IoT" devices, some of which may have previously been shipped. The condition of the Inventory will vary, and standard designations regarding a product's condition will be set forth in the Auction listing (the "**Listing**"). The conditions of the Inventory are described in the Listing to the best of T-Mobile's ability; however, T-Mobile does not warrant that the Listings are complete, accurate, reliable, current, or error-free. The Inventory is provided to you "as is" for purchase on the Site. The value of actual Inventory in each lot may vary up to five percent (5%) less or greater than the number set forth in the Listing and may include up to five percent (5%) value of more damaged items than designated as "Damaged" in the Listing. Accessories (such as USB cables, charger blocks, earbuds, and in-box literature) may or may not be included.





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3. **AUCTION ACTIVITIES.** For each Auction activity, Bidder agrees that T-Mobile has no responsibility or liability for any activities related to the Auction activity or the Inventory and that Bidder will not pursue any claim or cause of action against T-Mobile or its affiliates relating to or arising out of the Auction or the Inventory.

4. **RESULTS OF AUCTION ACTIVITIES.** Subject to Section 4 below, T-Mobile will evaluate each bid and other information provided by Bidders during the Auction. Any bids or other information that Bidder submits during the Auction are binding. If your bid is deemed the winning bid, you will be notified by email (the "**Email Notification**") at the email address you provided when you registered for your account, as updated by you from time to time by following instructions on the Site. This Email Notification will serve as your official proof of purchase and official invoice. Any additional formal invoice or proof of purchase outside of the original winning notification is supplemental. It is your responsibility to keep your email address current and to timely check your email to determine if you are the winning bidder for any Auction in which you participated. T-Mobile is not responsible for the failure of an Email Notification to reach a winning bidder for any reason, including but not limited to technical problems or other system error.

If your bid is deemed the winning bid at the end of the Auction for certain Inventory, you agree to promptly pay the Purchase Price for such Inventory pursuant to the terms and instructions set forth in Agreement and in the Email Notification. If you fail to make full payment within two (2) business days of the date of the Email Notification is sent, you will forfeit any right to purchase such Inventory and T-Mobile may deactivate your account and password so you can no longer access the Site and, at its sole discretion, may choose to (a) contact the next highest bidder in the Auction for such Inventory and offer to sell such Inventory to such bidder at such bidder's bid price, or (b) post such Inventory on the Site for sale in a new Auction. In addition, T-Mobile may restrict you from bidding in any further auctions on the Site. Penalties for your failure to complete the purchase of Inventory that is the subject of your winning bid are as set forth below. In the event that you do not timely pay for any given winning bid, you may be given the chance to pay a reinstatement fee in order to prevent the deactivation of your account. The fee amounts are as follows, within any 12-month period:

	1st offense	2nd offense	3rd offense
If the amount is between 0-\$10,000	\$100	\$500	\$1000
If the amount is over \$10,000	\$500	\$1000	\$1000





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5. AUCTION ACTIVITIES ARE CONDUCTED WITH CERTAIN RESERVATIONS. This Agreement does not commit T-Mobile to any specific course of action. Acceptance of this Agreement or any other document regarding an Auction does not bind T-Mobile to accept any bid or other terms stated during the Auction, in whole or in part, nor does it bind T-Mobile to provide any explanation or reason for its decision to accept or reject any bid or other term. If T-Mobile conducts an Auction for specific Inventory/Lot, T-Mobile reserves the right to:

- Discontinue or cancel the Auction activity or any Listing without reason or obligation at any time, including fulfillment of a purchase after completion of an Auction and payment for the Inventory;
- Accept or reject for any reason any or all bids, in whole or in part or other terms submitted during any Auction;
- Adjust the Auction timeline;
- Invite any number of Bidders, or none of the Bidders to participate in the Auction
- Award business to any Bidder or to more than one Bidder;
- Withhold information pertaining to any Auction winning bid;
- Withhold the name of Bidders from all other Bidders;
- Conduct additional electronic bidding events, including auctions; or
- Re-bid the Auction at T-Mobile's sole discretion.

If T-Mobile cancels any purchase of Inventory after you have submitted payment for such Inventory, T-Mobile will issue a credit to use for a future Auction or other method selected by T-Mobile.

6. COMMUNICATION WITH T-MOBILE. At T-Mobile's discretion, questions from Bidder and T-Mobile's answers may be shared with all Bidders, keeping all Bidder names confidential.

For technical questions regarding the Application, during an Open or In-Progress Auction, representatives will be available for assistance 7 x 24 (in English), excluding holidays.

The Technical Support team can be reached by email at: [\[run-us@ivalua.com\]](mailto:run-us@ivalua.com).

During an Auction, you may contact T-Mobile by using the messaging feature within the Application, email T-Mobile at tmobileliveaucton@t-mobile.com or call the T-Mobile Auction Hotline at 913-257-0940.





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7. **LANGUAGE AND CURRENCY.** This Agreement and all information related to the Auction will be communicated in English and use United States currency.

8. **TECHNICAL REQUIREMENTS FOR PARTICIPATION.** Before participating in an Auction, Bidder's operating system must, at Bidder's expense, meet the minimum requirements described below:

Internet connection: Modem, ISDN, DSL, T1 or Fiber. Your connection speed determines your access speed.

Web browser: Chrome (last 3 major releases), Firefox (last 3 major releases), Internet Explorer (all versions still supported by Microsoft).

To enable JavaScript in Internet Explorer:

- a) From the Tools menu, choose **Internet Options**, and then click the **Security** tab.
- b) Click the Internet icon, and then click **Custom Level**.
- c) Scroll down to **Scripting**,
- d) Set **Active Scripting** to **Enable**.

Bidder agrees that it is Bidder's obligation to have an appropriate, fully functioning operating system and Internet browser and that Bidder accepts the risk of any malfunction or failure of Bidder's computer hardware, software, Internet connection, operating system or Internet browser that may occur during an Auction. T-Mobile is not liable for any malfunction or failure. T-Mobile may, in its sole discretion and at any time, change the above minimum requirements.

Bidder agrees to use industry best practices to identify and screen for viruses, and prevent any virus or disabling device when utilizing its information systems in providing its bid. Bidder will not intentionally or negligently install any virus or disabling device in the course of providing its bid to T-Mobile. Bidder will assist T-Mobile in reducing the effects of any virus and disabling device discovered in any bid sent to T-Mobile.

THE APPLICATION AND THE SITE ARE PROVIDED ON AN "AS-IS" AND "AS AVAILABLE" BASIS. T-MOBILE AND IVALUA SPECIFICALLY DISCLAIM ANY REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED. NEITHER T-MOBILE NOR IVALUA WARRANT THAT THE APPLICATION OR THE SITE WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR FREE.

If the Auction activity is interrupted, stopped or otherwise canceled due to a failure or malfunction of a T-Mobile computer system, software program, electrical system or other causes, Bidder agrees that T-Mobile will not be responsible or liable in any way for any claims, costs, expenses, losses or other damages that may arise out of or relate to this occurrence.





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9. BIDDER RESPONSIBILITIES.

- a) Bids and information submitted during an Auction are submitted at Bidder's risk. It is the sole responsibility of each Bidder to know how to view, prepare and submit bids. If Bidder or Bidder's Representative makes an error in the submitted bid, Bidder assumes sole responsibility for the error. Bidder is permitted to allow Bidder's Representative to use Bidder's password or other approved access to the Auction, but if Bidder does so, then Bidder is irrevocably authorizing Bidder's Representative to act on Bidder's behalf. All information submitted during an Auction is binding.
- b) Bidder is responsible for all costs incurred for any Auction.
- c) Bidder is required to provide a single point of contact for the Auction.
- d) All Bidders must be in compliance with all applicable laws, rules, and regulations.

10. **SECURED ACCESS.** To protect the confidential information of T-Mobile from unauthorized use, including disclosure, loss or alteration, Bidder will ensure that all hardware and software systems used to access T-Mobile confidential information contain commercially reasonable security features.

11. **CHOICE OF LAW; FORUM.** This Agreement will be governed in all respects by, and construed and enforced in accordance with, the laws of the State of Washington without regard to any rules governing conflicts of laws. The parties consent to the exclusive jurisdiction over and venue in the state and federal courts located in King County, Washington.

By acknowledging this Agreement, Bidder's Representative confirms to T-Mobile that Bidder's Representative is authorized to act on behalf of the Bidder with the full authority to accept or decline the terms of this Agreement.

Bidder or Bidder's Representative has read, understands and agrees to be bound by this Agreement.





BELOW CONTENT MODIFIED 08/21/24
WAREHOUSE PICKUP INSTRUCTIONS

Coppell, TX Warehouse (FedEx, also known as DC45)

FOR NON-PARCEL FREIGHT and /or SELF-PICKUP SHIPMENTS ONLY: Your carrier and/or you will need to register for online access to the automated FedEx portal (C3) for FREIGHT shipment pickups. Please SEE DIRECTIONS BELOW and utilize the attached Excel document. **NOTE—**
MOST CARRIERS ALREADY HAVE ACCESS TO C3.



FSC DMS External
Company and User I

PLEASE FOLLOW THESE DIRECTIONS AS LISTED---

1. Complete the attached Excel template. An asterisk * indicates the required fields.
2. Users must have a unique email account. Group emails are not allowed.
3. Please be sure to fill out both tabs, Company Profile & User Profile.
4. Company type definitions:
 - Suppliers include manufacturing companies, material/product vendors with or w/out private fleet.
 - Carriers include asset-based companies not brokering.
 - Brokers include freight forwarders, brokerage services, 3PL's, 4PL's, and anyone subcontracting.
5. Submit the template(s) for the company and each user:
 - a. RETURN THE Excel TEMPLATE TO:
FSC-DMSLoginRequest@corp.ds.fedex.com
 - b. NOTE—The email subject line should be: "C3 Login Request--Coppell TX"
6. After confirmation of registration is received, email sam.schanker@t-mobile.com to let us know you have successfully registered.



6220 Sprint Parkway, Overland Park, KS 66251
www.t-mobile.com



AUCTION INVENTORY CONDITIONS

Item, Condition and Cosmetic Grade descriptions provided below:

Item Description:

Field may include Phone, Tablet, Modem, IOT, Accessory etc.

<blank> if field is blank refer to Model description provided.

Carrier: Field will indicate the Carrier, if known, including:

SPRINT

T-MOBILE

VERIZON

AT&T

GENERIC (carrier not specified)

OTHER (carrier not specified)

**Functional Tests Performed
(ONLY "+" and/or "-" Grades)**

- Device Charging (Chargeport)
- WiFi/Bluetooth
- Rear Camera Picture/Video
- Front Camera Picture/Video
- Display (LCD Test/Spots/Pixels)
- Ghost Failure (Burn in LCD)
- Blackspot/Whitespot
- SIM Card/Card Recognition
- Speaker (Includes Second Mic Speaker)
- Receiver/Microphone (Audio-Loopback)
- Earphone
- Earpiece
- Headset Unplug Test (If applicable)
- Headset Record Test (If applicable)
- Touch/Fingerprint
- Face ID
- Buttons (Volume/Power)

**New:
New Condition**

- Device does not have any cellular network usage
- No visible cosmetic defects





Grade A+: Like New Condition and Fully Functional	• Minimal scratches and blemishes • External LDI (Liquid Damage Indicator) not triggered / LDI may be missing • Functional (passed functional tests performed — see above for test list) • CPNI/Data cleared
Grade A: Like New Condition	• Minimal scratches and blemishes • External LDI (Liquid Damage Indicator) not triggered / LDI may be missing • Functional test not performed • LCD may contain shadows or burn-in since device is not functionally tested • CPNI/Data cleared
Grade A-: Like New Condition with Functional Defects	• Minimal scratches and blemishes • External LDI (Liquid Damage Indicator) not triggered / LDI may be missing • One or multiple functional defects may be present • CPNI/Data cleared
Grade B+: Light Wear and Tear and Fully Functional	• Does not contain deep (fingernail/tool catching) scratches • Can have one or multiple light scratches varying in length • No LCD/Touch panel cracks but light burrs are acceptable • Camera (front/rear) lens cracks may be present • External LDI not triggered / LDI may be missing • Functional (passed functional tests performed — see above for test list) • CPNI/Data cleared
Grade B: Light Wear and Tear	• Does not contain deep (fingernail/tool catching) scratches • Can have one or multiple light scratches varying in length • No LCD/Touch panel cracks but light burrs are acceptable • Camera (front/rear) lens cracks may be present • External LDI not triggered / LDI may be missing • Functional tests not performed • LCD may contain shadows or burn-in since device is not functionally tested • CPNI/Data cleared
Grade B-: Light Wear and Tear with Functional Defects	• Does not contain deep (fingernail/tool catching) scratches • Can have one or multiple light scratches varying in length • No LCD/Touch panel cracks but light burrs are acceptable • Camera (front/rear) lens cracks may be present • External LDI not triggered / LDI may be missing • One or multiple functional defects may be present • CPNI/Data cleared
Grade C+: More Aggressive Wear and Tear and Fully Functional	• Deep (fingernail/tool catching) scratches may be present on LCD/Touch panel or back housing/glass. Moderate burrs/dents are acceptable. • Externally viewable LDI not triggered / LDI may be missing • Functional (passed functional tests performed — see above for test list) • CPNI/Data cleared





Grade C: More Aggressive Wear and Tear	• Deep (fingernail/tool catching) scratches may be present on LCD/Touch panel or back housing/glass. Moderate burrs/dents are acceptable. • Externally viewable LDI not triggered / LDI may be missing • Functional tests not performed • LCD may contain shadows or burn-in since device is not functionally tested • CPNI/Data cleared
Grade C-: More Aggressive Wear and Tear with Functional Defects	• Deep (fingernail/tool catching) scratches may be present on LCD/Touch panel or back housing/glass. Moderate burrs/dents are acceptable. • Externally viewable LDI not triggered / LDI may be missing • One or multiple functional defects may be present • CPNI/Data cleared
Grade D: Heavy Cosmetic Damage with LCD/Touch Panel Cracks	• Will have excessive damage on multiple surface areas and cracks on the LCD/Touch panel and back • Missing small parts such as side keys, fingerprint sensor, speakers, flexes, front camera, daughter boards, camera/flash lens and internal mechanical parts (Display, PCBA, Main/Rear Camera, Housing and Battery not considered) • Externally viewable LDI may be triggered with or without corrosion / LDI may be missing • Functional tests not performed • CPNI/Data cleared
CPO: Certified Pre-Owned	• No functional defects identified • Primary viewable area (main display) may contain minor defects • Limited minor defects allowed on cover, housing, corners/edges, rear of device • CPNI/Data cleared





N or <Blank> – if field is blank or listed as “N”, a Cosmetic grade assessment has not been determined. New and/or Reconditioned devices will not be assigned a cosmetic grade.

DBR – a device that T-Mobile has confirmed to be Damaged Beyond Repair (DBR). The functional performance of a DBR device is unknown and not warranted by T-Mobile. Further, an item or LOT described with DBR in the Grade description may not Power On, Data Clear pass or have its User Lock removed.

DWF – a device that T-Mobile has confirmed to fail a Warehouse Data Clear process (also referred to as Data Wipe Fail (DWF)). The functional performance of a DWF device is unknown and not warranted by T-Mobile. Further, an item or LOT described with DWF in the Grade description may not Power On or have its User Lock removed and **MUST** be sold for PARTS ONLY.

PARTS ONLY CONDITIONS (DWF Lots)

- ☐ Buyer agrees to exclusively use purchased units to harvest parts for its consumption
 - Per our Contract, Buyer agrees to Data Clear or destroy any remaining device components after harvesting for parts.
- ☐ Functional performance and Lock Status is unknown, unless otherwise labelled
 - Units will have a Cosmetic Grade assigned, if known.
- ☐ Buyer is responsible for maintaining R2 Certification and collecting and disposing of electronic waste in accordance with industry best practices.

OTHER NOTES:

Device Powers on status: Inventory is confirmed to Power On unless otherwise labeled.

Anything labeled as DBR or DWF may not Power On.

Data Clear status: Inventory is confirmed to be Data Cleared unless otherwise labeled. Anything labeled as DBR or DWF may not Data Clear pass.

FMIP Lock status: iPhone inventory is processed FMIP-unlocked unless otherwise labeled.

Anything labeled as DBR or DWF may not be FMIP-unlocked.

Google/Android User Lock Status: Android inventory is processed Google/Android User - unlocked unless otherwise labeled. Anything labeled as DBR or DWF may not be Google/Android User-unlocked.

Non-T-Mobile product Device Lock Status T-Mobile has no access to locks on these devices. (FMIP/Google/Carrier/other)

Carrier Unlock: T-Mobile brand devices (T-Mobile/Sprint/Metro) sold in Auction will be submitted for Carrier Unlock.





AUCTION INVENTORY FREQUENTLY ASKED QUESTIONS

AUCTION INVENTORY

Q: Will T-Mobile provide Inventory Lot detail in advance of auctions?

A: Yes, T-Mobile will send an Inventory Lot detail report/file in advance of all Auctions for your review. This document will be attached in the T-Mobile Live Auction platform for the respective Auction date/invitation.

Q: Can I share the T-Mobile Inventory Lot detail Report with other third parties?

A: No. The Report is Confidential Information and should not be forwarded or otherwise shared with other parties. Please refer to the Confidential Information section of our agreement.

INVENTORY DESCRIPTIONS

Q: How does T-Mobile describe the Inventory placed into Auction?

A: Please refer to T-Mobile Inventory Descriptions. All Inventory descriptions and criteria may be subject to change, at T-Mobile's discretion, from time to time.

AUCTION LOTS/DESCRIPTIONS

Q: Does the device grade or (Cosmetic Grade) tell me if the unit is functional?

A: No, the device grade or (Cosmetic Grade) is a cosmetic assessment only. T-Mobile does not make representations to the functional performance of devices sold in Auction. All devices are sold AS IS per the contract.

Q: Do auction devices include original packaging, device accessories, charger or other components?

A: No, the shipment will include the device only, generally in slotted, master carton packaging.

LIVE AUCTION BIDDING:

Q: Do I have to bid on every Lot in the auction?

A: No, you may bid on as many or as few Lots as you choose. However, it is very important to fill out accurate Bids. All submitted Bids are binding. Repeated inaccurate bidding could result in your company's removal from future auctions.

Q: In the very rare event that I submit a Bid in error, what can I do to correct? (e.g. submitted wrong Bid \$\$ amount or submitted a Bid for the wrong LOT)

A: Buyer is required to immediately contact the T-Mobile Auction Team on our dedicated Auction hotline number. **This MUST occur before or during active Bidding for the LOT by calling 913-257-0940.** T-Mobile will make best efforts to delete the Buyers erroneous bid. In any case, any Bid submitted by the Buyer is binding per the Terms & Conditions.





INVOICE & PAYMENT

Q: When will I get an invoice to pay for my purchase?

A: After the Auction closes, our system will generate an Award Notification, shortly followed by a Pro-Forma Invoice.

Q: How long do I have to wire funds?

A: Upon receipt of the invoice, Buyer should wire funds. Payment is PAST DUE 48 hours after invoice.

Q: Where do I wire funds?

A: Please refer to the secured bank information document sent to you at initial Buyer set-up.

Q: Will T-Mobile accept an ACH instead of a wire transfer?

A: No. Buyer must submit all payments via bank wire.

TRANSPORTATION

Q: How will I know my shipment is ready for pick up?

A: After funds have been confirmed as received by T-Mobile, Buyer will receive a notification that shipment is ready for pick up at one of our distribution centers. Buyer has 48-hours to pick up from the T-Mobile Warehouse. Each distribution center has separate and unique procedures for arranging transportation. The notification will provide instructions for arranging transportation or by contacting the Auction team directly.

Q: What happens if I don't arrange pick up within 48 hours?

A: Delay in picking up Inventory in a timely manner could result in your company's removal from future auctions.

